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| 53 | <p><b>Duran vs. Starbucks Corporation</b></p> <p><b>25-01495343</b></p> | <p><b>Motion to Strike Portions Of Complaint</b></p> <p>Defendant Starbucks Corporation’s motion to strike is DENIED.</p> <p>Defendant Starbucks Corporation (Starbucks) moves to strike the punitive-damages allegations and prayer in the First Amended Complaint (FAC) filed by Plaintiffs Cesar Duran (Cesar) and Monica Duran (Monica).</p> <p><i>* Because Plaintiffs share the same last name, the court refers to them by their first names. No disrespect is intended.</i></p> <p>A motion to strike is the proper vehicle to challenge a claim for punitive damages. (Code Civ. Proc., §§ 435-436; <i>Turman v. Turning Point of Central California, Inc.</i> (2010) 191 Cal.App.4th 53, 63.) “In order to state a prima facie claim for punitive damages, a complaint must set forth the elements as stated in the general punitive damage statute, Civil Code section 3294. [Citation.] These statutory elements include allegations that the defendant has been guilty of oppression, fraud or malice. (Civ. Code, § 3294, subd. (a).)” (<i>Turman v. Turning Point of Central California, Inc., supra</i>, 191 Cal.App.4th at p. 63.)</p> <p>Civil Code section 3294 establishes the requirements for imposing punitive damages on an employer or principal based on the acts of an employee or agent. In addition to showing that the employee acted within the scope of employment, the plaintiff must allege and prove that: (1) the employer had advance knowledge of the employee’s unfitness and employed the employee with conscious disregard for the rights or safety of others; (2) the employer authorized or ratified the employee’s oppressive, fraudulent, or malicious conduct; or (3) the employer was personally guilty of oppression, fraud, or malice. (Civ. Code, § 3294, subd. (b); CACI Nos. 3943–3948; <i>Samantha B. v. Aurora Vista Del Mar, LLC</i> (2022) 77 Cal.App.5th 85, 106; <i>CRST, Inc. v. Superior Court</i> (2017) 11 Cal.App.5th 1255, 1262.)</p> <p>The FAC alleges sufficient facts to support Plaintiffs’ request for punitive damages. Read as a whole and accepted as true, the FAC supports a reasonable inference that Starbucks knew of recurring lid failures and serious burn risks but failed to redesign its lids, lower its serving temperature, or adequately warn customers. (FAC ¶¶ 15–20, 34, 50.) The alleged company-wide serving-temperature policy, repeated complaints, and notice of similar incidents also reasonably support an inference, at the pleading stage, that the challenged conduct reflected corporate policy established, maintained, or ratified by a Starbucks officer, director, or managing agent. (FAC ¶¶ 17–20, 35, 51.)</p> <p>Accordingly, the motion to strike is DENIED. Defendant shall file and serve its answer within 15 days of service of notice of this ruling. Plaintiffs to give notice.</p> |
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| 54 | <p><b>El vs. Hyundai Motor America</b></p> <p><b>25-01471426</b></p> | <p><b>1. Demurrer to Amended Complaint</b><br/> <b>2. Motion to Strike Portions Of Complaint</b></p> <p>The Demurrer to the First Amended Complaint brought by Defendant Hyundai Motor America is <b>OVERRULED</b>, in whole.</p> <p>Defendant’s unopposed Request for Judicial Notice is <b>GRANTED</b>, pursuant to Evidence Code section 452, subdivision (h).</p> <p>Initially, Defendant challenges the First through Third Causes of Action, solely on the basis the same are barred by the six-year statute of limitations provided in Code of Civil Procedure section 871.21. (Demurrer: 5:22-7:8 [ROA No. 86].) Defendant challenges the Fourth Cause of Action, on the same basis. (<i>Ibid.</i>)</p> <p>Pursuant to Code of Civil Procedure section 871.21, subdivision (b), “an action covered by Section 871.20 shall not be brought later than six years after the date of original delivery of the motor vehicle.” (Code Civ. Proc., § 871.21, subd. (b).)</p> <p>Although disputed by Plaintiff, all four of Plaintiff’s Song-Beverly claims are encompassed within Code of Civil Procedure section 871.20, as this provision expressly references claims brought pursuant to Civil Code section 1794, as well as requests for civil penalties thereunder. (Code Civ. Proc., § 871.20, subd. (a).)</p> <p>While the Third Cause of Action alleges Plaintiff was injured by Defendant’s violation of Civil Code section 1793.2, subdivision (a)(3), Plaintiff nonetheless indicates he “brings this Cause of Action pursuant to Civil Code section 1794.” (¶63 of FAC [ROA No. 64].) This is sufficient to bring the claim within Code of Civil Procedure section 871.20. (See <i>Soro v. FCA US, LLC</i> (S.D. Cal. 2026) 2026 WL 473050, at p. 4.)</p> <p>Here, it is undisputed that Plaintiff purchased his vehicle on August 22, 2017. (¶16 of FAC [ROA No. 64].) Additionally, a review of the record confirms that Plaintiff initiated this action more than 6 years later, on March 28, 2025. (See ROA No. 2.)</p> <p>Nonetheless, Plaintiff persuasively asserts that application of Code of Civil Procedure section 871.21 within this action, would be improperly retroactive.</p> <p>“Generally, statutes operate prospectively only.” (<i>McClung v. Employment Development Dept.</i> (2004) 34 Cal.4th 467, 475.) “[A] statute may be applied retroactively only if it contains express language of retroactivity <i>or</i> if other sources provide a clear and unavoidable implication that the Legislature intended retroactive application.” (<i>Ibid.</i>)</p> |
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